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**JUSTIFICATION & APPROVAL FOR FEDERAL ACQUISITION
REGULATION SUBPART 16.5 ACQUISITIONS
EXCEPTION TO FAIR OPPORTUNITY**

Multiple Award Contract
Orders under Fair Opportunity
Federal Acquisition Regulation (FAR) 16.505(b), Defense FAR Supplement 216.505(b),
Procedures, Guidance, and Information 216.505(b)

Purchase Request Number: HDTRA1653996

Joint Warfighting Cloud Capability (JWCC) Contract Number: HC105023D0005

Task Order (TO) Number: To be determined

Procurement Title: Mission Assurance Risk Management System (MARMS) 2

[REDACTED]

Statutory and Regulatory Authority: 10 United States Code (U.S.C.) 3204(a) and Revolutionary
FAR Overhaul (RFO)16.507-6(b)(3)

EXCEPTION TO FAIR OPPORTUNITY

Number:

Upon the basis of the following justification, I, as the Contracting Officer hereby approve this
exception to fair opportunity pursuant to the Statutory Authority of 10 U.S.C. 3204(a) and
Regulatory Authority of FAR RFO 16.507-6(b)(3)

1. REQUESTING AGENCY AND CONTRACTING OFFICE:

Requesting Agency:

Defense Threat Reduction Agency (DTRA)

8725 John J Kingman Rd Ste 6201

Fort Belvoir, VA 22060

Contracting Activity:

Defense Information Systems Agency (DISA)/Defense Information Technology

Contracting Organization (DITCO)/Cloud Capabilities Section (PS8511)

2300 East Drive

Scott Air Force Base, IL 62225-5406

2. NATURE/DESCRIPTION OF ACTION(S):

This action is to issue a firm-fixed-price TO against the JWCC Indefinite Delivery/Indefinite
Quantity Contract for Mission Assurance Risk Management System 2. This TO will be issued
directly to Amazon Web Services, Inc (AWS). The anticipated period of performance (PoP) is
for a 1-year base period, plus one 1-year option period and one 9-month option period. The total
estimated value is [REDACTED] which will be funded by Research, Development, Test, &
Evaluation funds and Operations & Maintenance funds.

Controlled by: DTRA

Controlled By: MARMS PMO

CUI Category: OPSEC

Distribution/Dissemination Control: FEDCON

POC: BRYAN DRISKELL, +1 5716164889, BRYAN.B.DRISKELL.CIV@MAIL.MIL

Mission Assurance Risk Management System 2

3. DESCRIPTION OF SUPPLIES/SERVICES:

The Requirement for the Mission Assurance Risk Management System (MARMS) is to host the MARMS Database Registry which enables application programming interfaces (APIs) for federated data sharing among other DoD systems of record, and for hosting the MARMS Enterprise Mission Assurance Analysis Portal (eMAAP) which is a situational awareness website and has its own local database separate from the MARMS Registry. This MARMS Technology stack of Registry, Website, and Geographic Information System (GIS) Storage on all three DoD networks, Nonsecure Internet Protocol Router Network (NIPRNet), Secret Internet Protocol Router Network (SIPRNet) and Joint Worldwide Intelligence Communications System (JWICS).

4. SUPPORTING RATIONALE, INCLUDING A DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF AN EXCEPTION TO FAIR OPPORTUNITY:

(a) Exception to Fair Opportunity.

RFO 16.507-6(b)(3) - The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

(b) Description of the Justification.

The basis for this justification is that AWS possesses unique capabilities to fulfill the Government's minimum requirement. AWS is the only CSP that has cloud services for cross domain solution (CDS) approved for moving data between the networks that MARMS requires.

(c) Justification.

(1) Minimum Government requirements.

The minimum Government Requirement for the Cloud Service Provider (CSP) is for Infrastructure as a Service (IaaS) to host the MARMS Software on NIPR, SIPR, and JWICS, and to meet the joint validated requirement to move MARMS Mission Assurance (MA) data from SIPR to JWICS and to move SIPR data at JWICS back down to SIPR.

(2) Proposed sole source contractor.

Amazon Web Services, Inc

(3) Discussion regarding the cause of the sole source situation.

The only CSP capable of performing DTRA's cloud services at the required level of quality is AWS. The refactoring of the current environment from AWS to another CSP

Mission Assurance Risk Management System 2

would cost an estimated [REDACTED] and delay DTRA the ability to deliver the MARMS system as a joint required capability by September 30th, 2026, on all three networks, NIPR, SIPR, & JWICS with Cross Domain Solutions (CDS) between each network. Any re-architecting, re-engineering, and refactoring of any of the critical cloud offerings from AWS to any other CSP would not meet the Government's need for compatibility. In addition, there would be a duplication of costs by having to keep the solution running on one platform while refactoring it on another platform, none of which would provide any benefit to the Government.

(4) Demonstration of unique source.

AWS possesses the knowledge, skills, capabilities, certification, clearance, and experience required to continue the program without a break or degradation in critical mission services. AWS is the only CSP that has an approved Cross Domain Solution to specifically move data from SIPRNet to JWICS. No other CSP can assume control of the environment without extensive re-engineering, retraining, and re-accreditation. Additionally, transitioning to another CSP would take 12 months and an estimated cost of [REDACTED]. Given these critical mission requirements, AWS is the only contractor that is capable of performing the necessary services for the DoD within the current required timeline.

(5) Procurement discussion.

Based on the outreach to the four CSPs in December 2025, the only CSP that is currently capable of meeting the minimum needs of the Government is AWS. The schedule requirements for MARMS are that we have no gap in operations on SIPR. MARMS has high expectations from our user community to deliver MARMS on JWICS which has been the most needed requirement as soon as possible. The DTRA Cloud Management Office has confirmed that AWS is still the only CSP who can meet the requirement of having an approved Cross Domain Solution to specifically move data from SIPRNet to JWICS.

(6) Impact.

Transition to another CSP from AWS is not feasible based on the inability of any other CSP to move MARMS MA data from SIPR to JWICS and to move SIPR data at JWICS back down to SIPR. The impact of not procuring through AWS would result in DTRA being unable to complete a successful and timely transfer to JWCC. Additionally, it would delay DTRA the ability to deliver the MARMS system as a joint required capability by September 30th, 2026, on all three networks, NIPR, SIPR, & JWICS with Cross Domain Solutions (CDS) between each network.

5. COST/PRICE FAIR AND REASONABLE DETERMINATION:

A determination that the price is fair and reasonable will be based on a comparison of the contractor's proposal to the independent government cost estimate and the JWCC Catalog

Mission Assurance Risk Management System 2

pricing, including any discounts, which was previously found to be fair and reasonable and based on the contractor's commercial pricing.

6. MARKET RESEARCH:

Market research for the basic JWCC Contracts was conducted and resulted in a signed market research report on November 9, 2021, that was revalidated and recertified on July 29, 2024. After a survey of the market, it was concluded that use of the JWCC Contract is in the Government's best interest due to technical feasibility and cost to the Government.

Additional research was conducted Jul 28, 2025, by reviewing the specific capabilities in the JWCC Contracts and it was determined that AWS is the only source capable of fulfilling the Government's minimum needs in the manner and time frame required.

Market research was conducted using several techniques to assess the availability of alternative sources and validate the necessity of acquiring these services from AWS under the JWCC contract including issuance of the Additional Research to Support Fair Opportunity in December 2025 to all four JWCC CSPs.

AWS indicated they can support the Government's requirement and meet mission needs without introducing unacceptable operational risk. Microsoft replied they can support all the requirements except for Impact Level 6>TS due to pending Assessment and Authority to Operate. Google and Oracle replied and stated that they do not intend to submit an official response. AWS is the only CSP who can meet the requirement of having an approved CDS to specifically move data from Secret Internet Protocol Router Network (SIPRNet) to JWICS.

7. ANY OTHER SUPPORTING FACTS: None.

8. ACTIONS THE AGENCY MAY TAKE TO REMOVE OR OVERCOME BARRIERS THAT LED TO THE EXCEPTION TO FAIR OPPORTUNITY:

(a) Procurement History:

Incumbent Contractor: Amazon Web Services

Contract Number: HC105023D0005

Task Order Number: HC105024F0036

Period of Performance: September 18, 2024 - September 18, 2028

Competitive Status: Full and open competition

Business Size: Large business

- (b) To overcome future barriers to competition, future development and enhancement of IaaS components will include shifting to a containerized platform. This will enable multiple CSPs to meet the requirements which will enable flexibility to shift workload based on financial and mission requirements.

The previous procurement was not based upon an exception to fair opportunity

CUI

Mission Assurance Risk Management System 2

TECHNICAL CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: Mr. Bryan Driskell

SIGNATURE: See separate signature page

TITLE/AGENCY: Program Manager, Defense Threat Reduction Agency (DTRA)

[REDACTED]

REQUIREMENTS CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: Mr. Bryan Driskell

SIGNATURE: See separate signature page

TITLE/AGENCY: Program Manager, Defense Threat Reduction Agency (DTRA)

[REDACTED]

CONTRACTING OFFICER CERTIFICATION: I certify that this justification is accurate and complete to the best of my knowledge and belief.

NAME: Jacob R. Benhoff

SIGNATURE: See separate signature page

TITLE/AGENCY/ORGANIZATION: Contracting Officer/DISA/DITCO/PS8511

[REDACTED]

ALL QUESTIONS REGARDING THIS JUSTIFICATION ARE TO BE REFERRED TO
Morgan Bauer, [REDACTED]